

SENATE No. 3076

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, May 18, 2026.

The committee on Labor and Workforce Development to whom was referred the petition (accompanied by bill, Senate, No. 1303) of Lydia Edwards, Paul W. Mark and Vanna Howard for legislation to provide opportunities for apprentices to complete their training and ensuring for a skilled workforce in the Commonwealth of Massachusetts, report the accompanying bill (Senate, No. 3076).

For the committee,
Jacob R. Oliveira

SENATE No. 3076

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing opportunities for apprentices to complete their training and ensuring for a skilled workforce in the commonwealth of Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Be it enacted by the Senate and House of Representatives in General Court assembled,
2 and by the authority of the same, as follows:

3 SECTION 1. Section 26 of Chapter 149 is hereby amended by adding at the end:

4 For projects over one million dollars, the total hours of employees, by trade, receiving an
5 hourly wage who are directly employed on the site of the project, employed by the contractor or
6 a subcontractor and subject to the prevailing wage, shall be performed by apprentices in bona
7 fide apprentice training programs as provided in sections 11H and 11I of chapter 23 of the
8 General Laws which are approved by the division of apprentice training in the executive office
9 of labor and workforce development and in compliance with apprentice ratios established by any
10 trades license board or which are registered with and approved by the U.S. Department of Labor
11 and which have graduated at least one (1) apprentice within the last five years. Nothing in this
12 section requires that the apprenticeship program in which apprentices are enrolled qualify as an

employee welfare benefit plan under the Employee Retirement Income Security Act of 1974 (ERISA), 29 U.S.C. §§1001-1461.

Six months after the passage of this act 5% of the hours shall be performed by apprentices.

One year after 10%

Two years after 15%

Section 6 of Chapter 149 A shall be amended by adding a new section:

(f) For projects over one million dollars, the total hours of employees, by trade, receiving an hourly wage who are directly employed on the site of the project, employed by the contractor or a subcontractor and subject to the prevailing wage, shall be performed by apprentices in bona fide apprentice training programs as provided in sections 11H and 11I of chapter 23 of the General Laws which are approved by the division of apprentice training in the executive office of labor and workforce development and in compliance with apprentice ratios established by any trades license board or which are registered with and approved by the U.S. Department of Labor and which have graduated at least one (1) apprentice within the last five years. Nothing in this section requires that the apprenticeship program in which apprentices are enrolled qualify as an employee welfare benefit plan under the Employee Retirement Income Security Act of 1974 (ERISA), 29 U.S.C. §§1001-1461.

Six months after the passage of this act 5% of the hours shall be performed by apprentices.

One year after 10%

Two years after 15%

Chapter 30 Section 39m is hereby amended by adding a new section:

(f) For projects over one million dollars, the total hours of employees, by trade, receiving an hourly wage who are directly employed on the site of the project, employed by the contractor or a subcontractor and subject to the prevailing wage, shall be performed by apprentices in bona fide apprentice training programs as provided in sections 11H and 11I of chapter 23 of the General Laws which are approved by the division of apprentice training in the executive office of labor and workforce development and in compliance with apprentice ratios established by any trades license board or which are registered with and approved by the U.S. Department of Labor, and which have graduated at least one (1) apprentice within the last five years. Nothing in this section requires that the apprenticeship program in which apprentices are enrolled qualify as an employee welfare benefit plan under the Employee Retirement Income Security Act of 1974 (ERISA), 29 U.S.C. §§1001-146

Six months after the passage of this act 5% of the hours shall be performed by apprentices.

One year after 10%

Two years after 15%

SECTION 2. (a) There is hereby established a special commission on apprenticeships in the commonwealth to study, evaluate and make recommendations on the development, accessibility, quality, funding and utilization of apprentice and pre-apprentice programs across

all industry sectors; provided, that the commission shall prioritize the following industry sectors:
public works, construction, transportation, infrastructure and emerging industries.

(b) The commission shall consist of the following members: the secretary of labor and workforce development or a designee, who shall serve as chair; the director of apprentice standards or a designee; the secretary of economic development or a designee; the secretary of transportation or a designee; the commissioner of elementary and secondary education or a designee; the president of the Massachusetts AFL-CIO or a designee; and 5 members to be appointed by the chair who shall be: 1 representative of a union apprentice program, 1 representative of an open-shop or non-union apprentice program, 1 representative of construction contractors, 1 representative of a minority-owned business or women-owned business engaged in an apprenticeable occupation and 1 member with expertise in workforce development or labor economics.

(c) The commission shall study apprentice and pre-apprentice programs, including, but not limited to: (i) the adequacy of existing apprentice and pre-apprentice programs to meet current and projected workforce needs; (ii) barriers to participation for workers, employers and sponsors; (iii) alignment of apprentice programs with secondary and post-secondary education pathways; (iv) the feasibility of expanding the department of elementary and secondary education's innovation career pathways program to include building and transportation; (v) funding mechanisms and appropriation strategies to expand and strengthen apprentice programs; (vi) progress on the phasing in of apprentice ratios pursuant to paragraph (H) of subdivision (2) of section 44A of chapter 149 of the General Laws; and (vi) statutory or regulatory changes necessary to improve apprenticeship utilization and outcomes.

76 (d) Not later than January 1, 2027, the commission shall file a report of its findings and
77 any recommendations, including draft legislation, with the clerks of the house of representatives
78 and the senate, the chairs of the house and senate committees on ways and means and the chairs
79 of the joint committee on labor and workforce development.